Part A – Explanation

DCP Purpose and Application

PART A - EXPLANATION

Name of the Plan

This Plan is called the *Kempsey Development Control Plan 2026* ('the DCP'). The DCP has been prepared in accordance with Section 3.43 of the *Environmental Planning and Assessment Act 1979*.

Date of commencement

The DCP was adopted by Kempsey Shire Council (KSC) on 16th of June 2026 and came into effect on 1st of July 2026.

Purpose of the Development Control Plan

The purpose of this DCP is to:

- Give effect to the objectives of the *Kempsey Local Environmental Plan*.
- Guide development that is permissible under the *Kempsey Local Environmental Plan*.
- Achieve the objectives of land-use zones prescribed under the *Kempsey Local Environmental Plan*.
- Outline Council's requirements for new development in Kempsey Shire.

The Local Environmental Plan and the Development Control Plan

The *Kempsey Local Environmental Plan* is an Environmental Planning Instrument (EPI), a statutory document, while the *Kempsey Development Control Plan* is a guiding document. Together they provide local land-use planning and development control in Kempsey Shire (refer Fig A.1 below).

Applicants will need to consult the Kempsey Local Environment Plan (and KLEP mapping) to determine the current statutory planning parameters for their subject land/site, such as the Land Use Table; Objectives of zone, Permitted without consent, Permitted with consent, Prohibited activities, minimum lot sizes, floor space ratios and other environmental, locality and land use activity information that may apply.

Applicants are responsible for ascertaining all applicable provisions within the Local Environmental Plan before using this Development Control Plan.

The DCP provides information and guidance on particular aspects of a site, its locality, characteristics and the proposed development type(s), through stated objectives, desired outcomes and development control requirements. These must be considered in preparing development applications.



Figure A.1 – Relationship of the Kempsey Local Environmental Plan (LEP) to the Development Control Plan (DCP)

Application of this DCP

The DCP applies to all land within the **Kempsey Shire** Local Government Area (LGA).



Figure A.2 – Kempsey Shire Local Government Area (LGA) Application of this Development Control Plan

Parts

The DCP is comprised of 5 parts:

Part A – Explanation

Part B – Shire-Wide Requirements

Part C – Place-Based Requirements

Part D – Development Requirements

Part E - Appendices

The Development Control Plan is arranged in a sequence so that all users and applicants follow an order from the beginning with Shire-wide requirements that may apply to any development, through particular locality provisions, to finally development type specific requirements (refer figure A.3) and supplementary information.

***Development applications must address all the relevant parts and sections applicable to the proposed development*.**

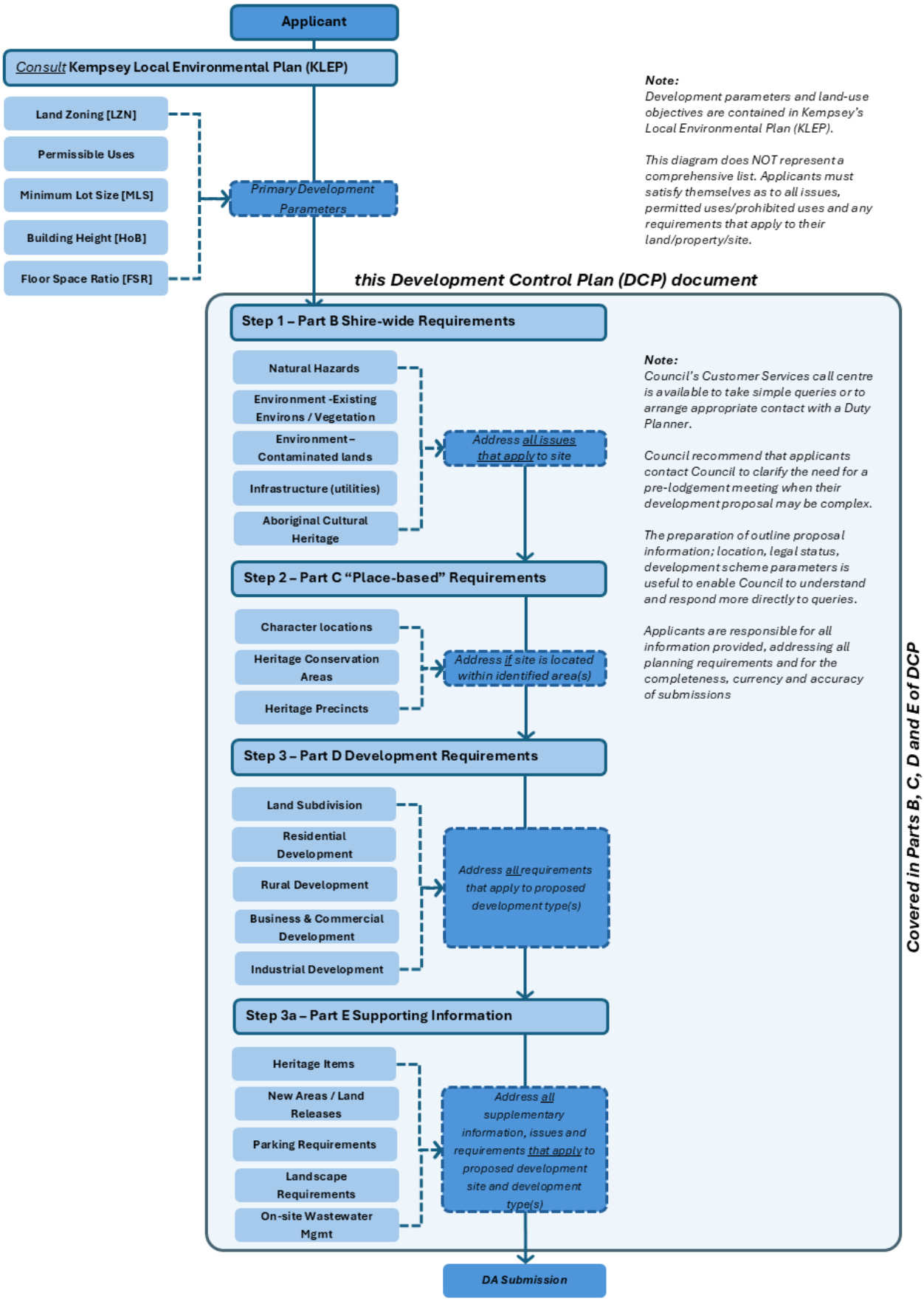


Figure A.3 – Step-by-Step navigation of the Kempsey Shire Development Control Plan

Relationship to other plans, policies and guidelines

The DCP is to be read in conjunction with other environmental planning instruments, standards, policies and specifications that are relevant to specific aspects of a development proposal. To obtain further relevant information:

For NSW State legislation and policy go to ;	***legislation.nsw.gov.au/browse/inforce***
For local Development Policy and DCP guidance go to ;	***www.kempsey.nsw.gov.au, and "Plan & Build" webpages***
For planning maps go to ;	***NSW Planning Portal Spatial Viewer***
For development applications go to ;	***www.planningportal.nsw.gov.au***

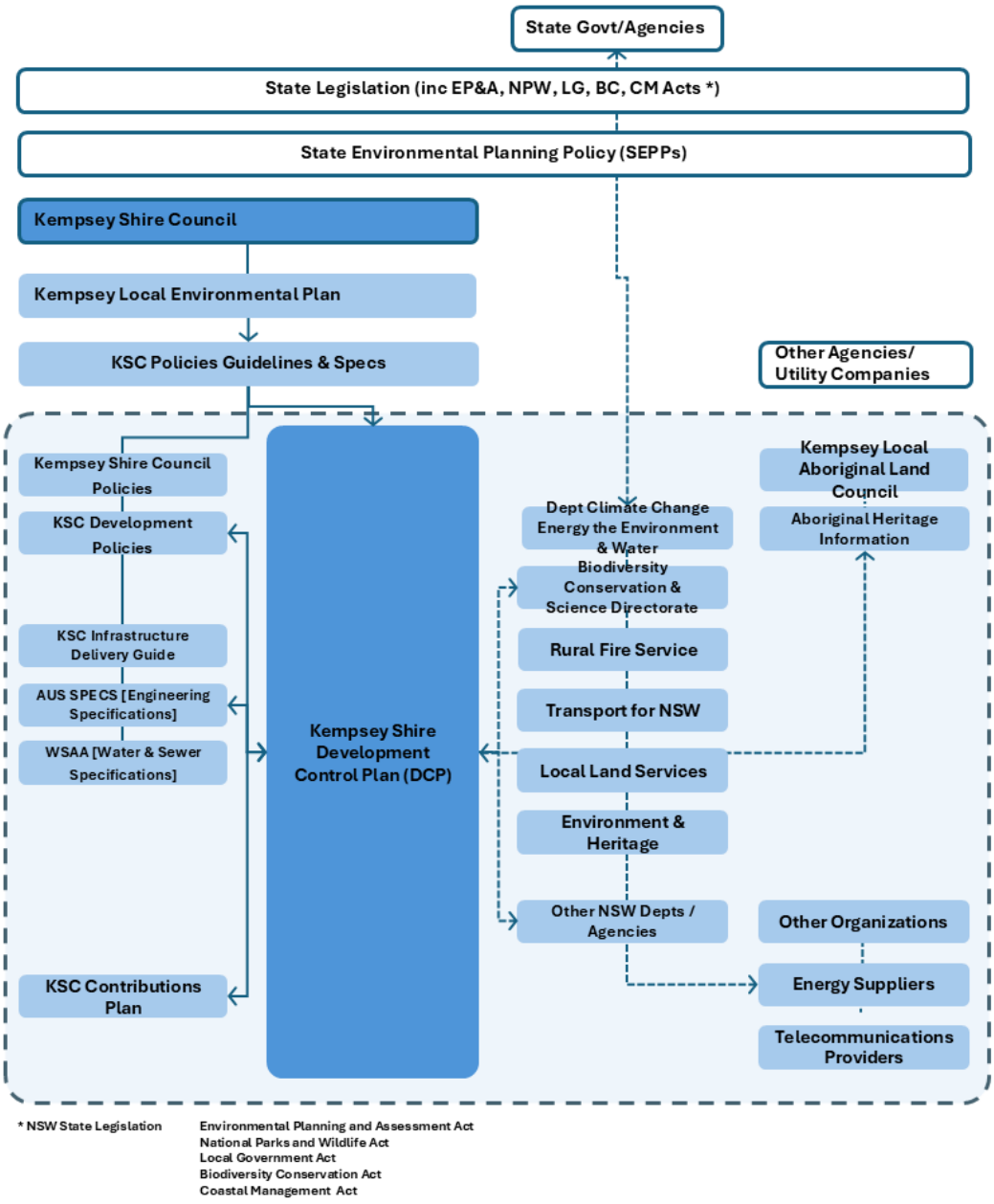


Figure A.4 – Kempsey Shire Development Control Plan "Useful local and external references from the DCP" [Note: Indicative list of Govt Depts, Agencies and Organisations only. Applicants are responsible for checking and verifying any and all necessary Legislative, Policy, Regulation, Codes and Standards compliance]

References in the Development Control Plan (DCP)

Throughout this DCP there are references to external documents and standards. These include but are not limited to State Environmental Planning Policies (SEPPs), KLEP, KSC Infrastructure Delivery Guide, KSC Development Specifications, AUS-SPEC and Water Services Association of Australia (WSAA) specifications and standard drawings and Australian and New Zealand Standards. In all circumstances the reference given is taken to mean the current version of that planning instrument, policy, standard or specification.

In the event of an inconsistency between the DCP and any other statutory environmental planning instrument (e.g. KLEP, SEPPs – refer Figure A.4 above) applying to the same land, the provisions of the other statutory or higher level environmental planning instrument may prevail to the extent of that inconsistency.

Development application guidance

All types of local development, whether subdivision, building, demolition or other type of development requires the submission of a Development Application with Council for assessment and determination unless the development is identified as Exempt Development or Complying Development or is State Significant Development (refer Figure A.5 below).

Information on how to prepare your Development Application can be viewed online from **www.kempsey.nsw.gov.au.**

Any person wishing to carry out subdivision, building, demolition or other type of development work is invited to consult with Council's Planning staff before submitting a Development Application. This will allow Council staff to provide project specific advice in relation to any development controls that may apply to the land and any other issues that might affect the use of the land.

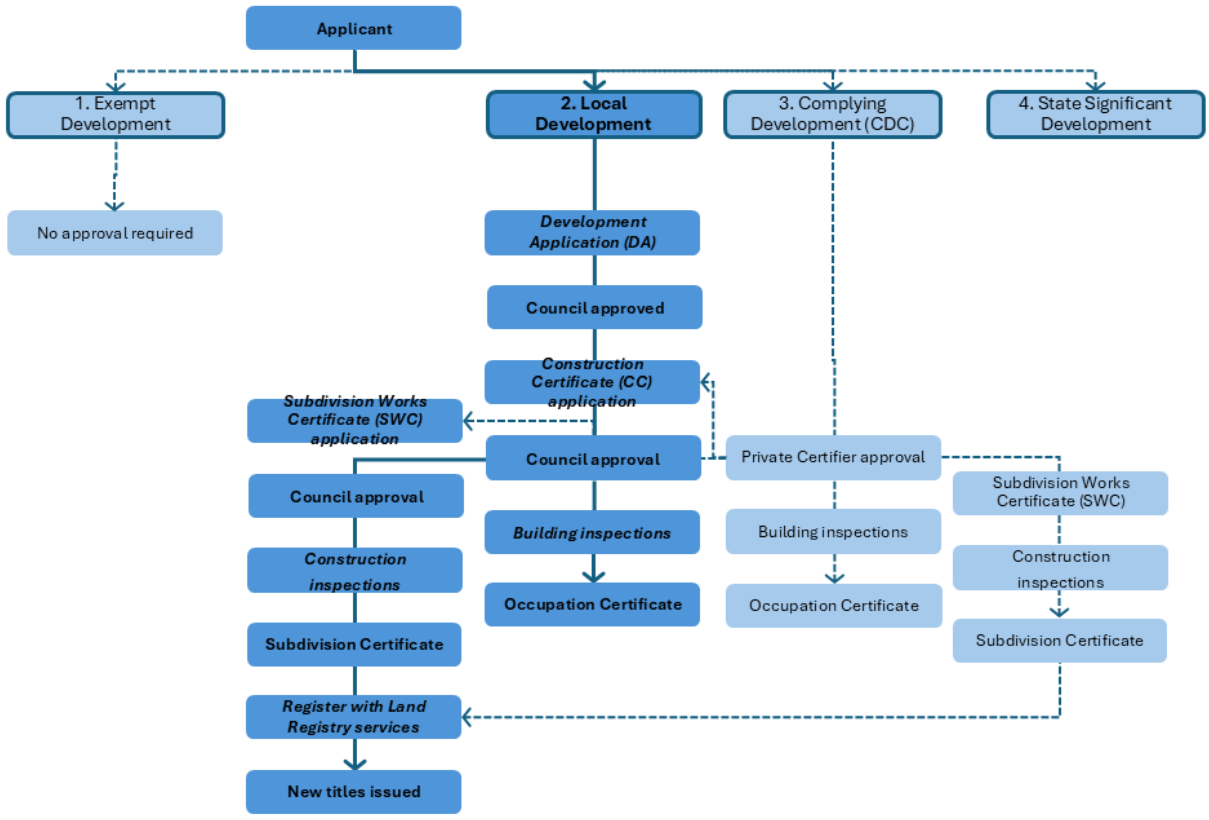


Figure A.5 – Development Approval Pathways (This DCP covers pathway **2. Local Development**)

When is a Development Application not required?

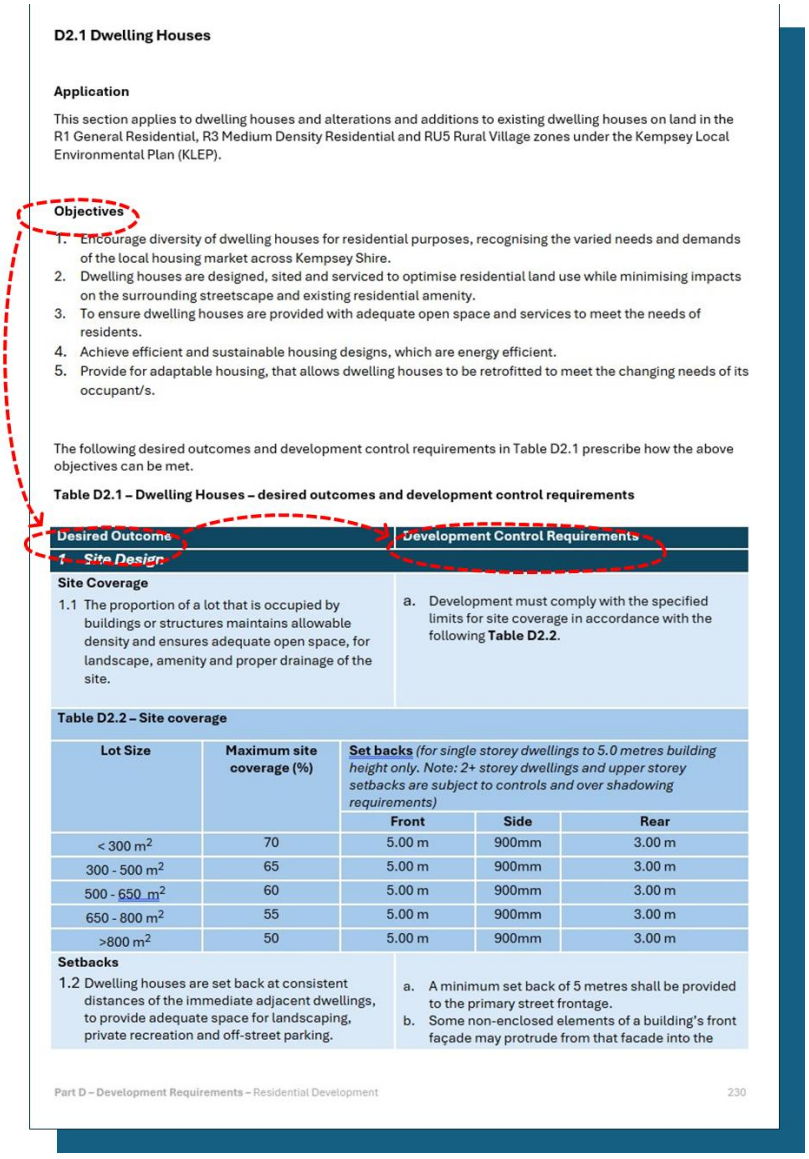
A development application is not required for any development specified in any SEPP or KLEP as being permissible without development consent or is 'exempt development'.

When is a Development Application required?

A development application is required for all local development specified in any SEPP or KLEP as being permissible with development consent.

Using the DCP

The DCP has been prepared based on a framework that consists of '**Objectives'** (setting positive overall development aims for the Shire, the locality and its community), '**Desired Outcomes**' (what the DCP seeks to achieve through development) and **Development Control Requirements** (how these outcomes can be achieved), refer Figure A.6 below. There may be instances where a number of development control requirements need to be met in order to achieve the desired outcome.



D2.1 Dwelling Houses

Application

This section applies to dwelling houses and alterations and additions to existing dwelling houses on land in the R1 General Residential, R3 Medium Density Residential and RU5 Rural Village zones under the Kempsey Local Environmental Plan (KLEP).

Objectives

1. Encourage diversity of dwelling houses for residential purposes, recognising the varied needs and demands of the local housing market across Kempsey Shire.
2. Dwelling houses are designed, sited and serviced to optimise residential land use while minimising impacts on the surrounding streetscape and existing residential amenity.
3. To ensure dwelling houses are provided with adequate open space and services to meet the needs of residents.
4. Achieve efficient and sustainable housing designs, which are energy efficient.
5. Provide for adaptable housing, that allows dwelling houses to be retrofitted to meet the changing needs of its occupant/s.

The following desired outcomes and development control requirements in Table D2.1 prescribe how the above objectives can be met.

Table D2.1 – Dwelling Houses – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1 Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.	a. Development must comply with the specified limits for site coverage in accordance with the following **Table D2.2**.

Table D2.2 – Site coverage

Lot Size	Maximum site coverage (%)	Set backs *(for single storey dwellings to 5.0 metres building height only. Note: 2+ storey dwellings and upper storey setbacks are subject to controls and over shadowing requirements)*		
		Front	Side	Rear
< 300 m²	70	5.00 m	900mm	3.00 m
300 - 500 m²	65	5.00 m	900mm	3.00 m
500 - 650 m²	60	5.00 m	900mm	3.00 m
650 - 800 m²	55	5.00 m	900mm	3.00 m
>800 m²	50	5.00 m	900mm	3.00 m

Setbacks 1.2 Dwelling houses are set back at consistent distances of the immediate adjacent dwellings, to provide adequate space for landscaping, private recreation and off-street parking.	a. A minimum set back of 5 metres shall be provided to the primary street frontage. b. Some non-enclosed elements of a building's front façade may protrude from that facade into the

Part D – Development Requirements – Residential Development 230

Figure A.6 – Kempsey DCP example – Objectives and "the Controls"; Desired Outcomes and Development Control Requirements

The **development control requirements** are set alongside the relevant **desired outcomes** to be read together as forming the controls (Figure A.6). For assessment of local development applications through this Development Control Plan (DCP) the objectives must be met. The controls together provide a clear pathway to meet the objectives.

Variation to a standard

The provisions within this DCP represent Council policy and community expectations, so it is expected that development proposals comply with the provisions of the Development Control Plan as a minimum.

There may be circumstances where a proposed development does not comply with a Development Control Requirement. In such cases the development application must demonstrate how the alternative solution will achieve the Desired Outcome, supported by relevant information and a written justification.

Development Control Requirements will be deemed to have been met where the applicant has demonstrated, to the satisfaction of Council, that the Desired Outcome will be achieved.

This provision enables the development of innovative solutions that meet the particular characteristics of an individual site. **No guarantee of approval can be given for a Development Application proposing a variation to a development control standard.**

Pre-development application consultation

Beyond simple queries, Council also provides Pre-Development Application services, such as a Pre-Lodgement Meeting dependant on the type and scale of development proposed. Before lodging any application proposal to subdivide land, or undertake sensitive, complex or large-scale development for example, within Kempsey Shire, it is recommended that the applicant approach Council to determine the need for a **Pre-Lodgement Meeting**. Such a meeting will be based on the location, scale, infrastructure and complexity of the proposal, for discussion of various aspects with relevant Council Officers.

Please refer to the "Plan & Build" pages of Kempsey Shire Council's website, or contact Council directly for further information on the services available. Costs for particular detailed consultation such as a Pre-Lodgement Meeting can be found on Council's website under "Fees and Charges".

Development stages – the Development Assessment and Consent Process

To facilitate clear and complete development application submissions, Figure A.7 outlines the full extent of the process for local land, property, demolition and building development, planning, approvals construction and occupation.

1. **Development Application Stage:** Planning and Design requirements, and development control requirements (the stage for which this DCP document principally applies).
2. **Approvals and Construction Stage**:
3. **Completion and Occupation Stage**:

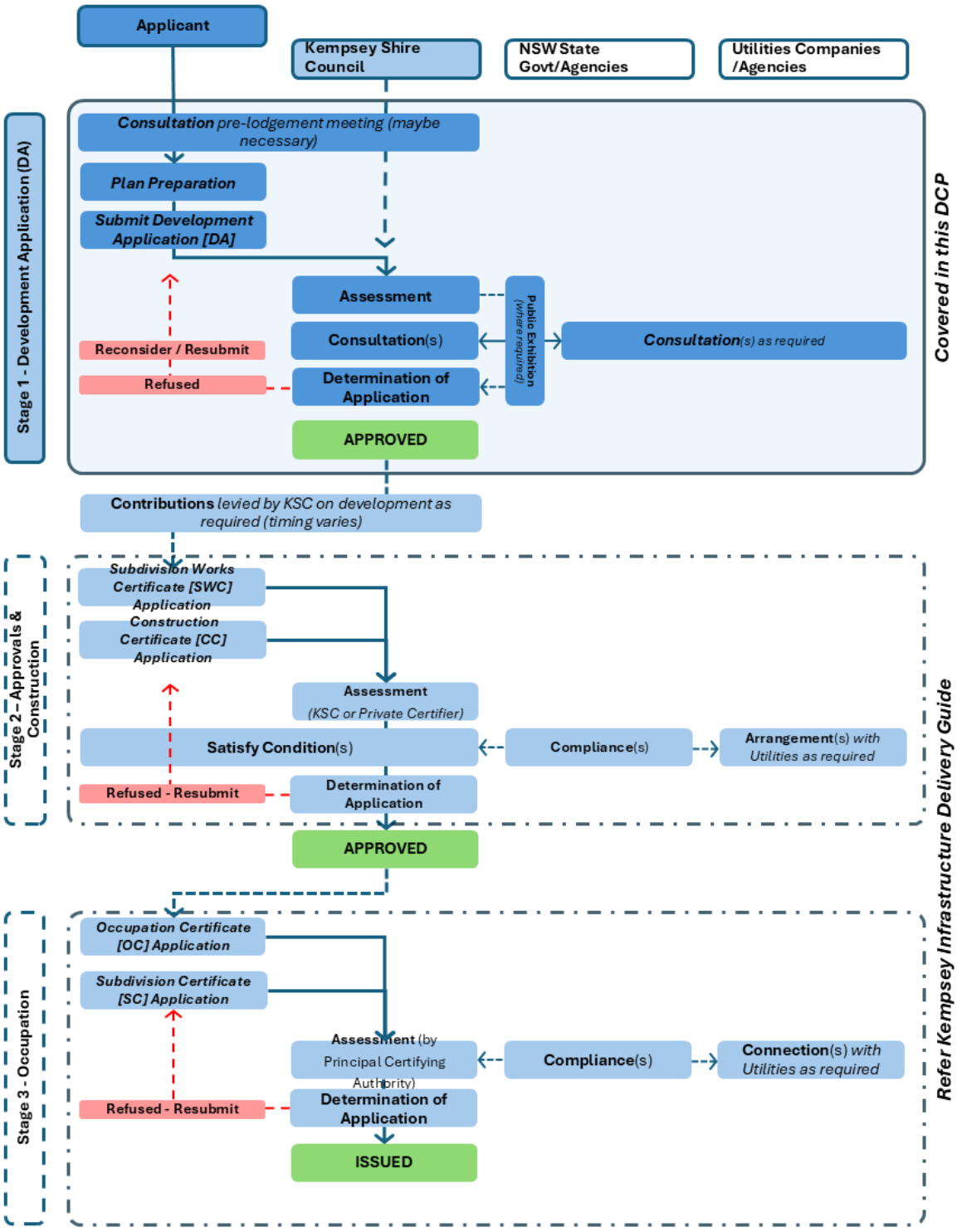


Figure A.7 – Kempsey Shire Local Government Area (LGA) Application of this Development Control Plan within the whole multi-step development process

This **Development Control Plan** (DCP) provides the information applicants need to address in the first stage; making applications, and for Council's Planners to assess, determine and condition development applications.

Note: *All applications are submitted through the NSW Planning Portal (planningportal.nsw.gov.au). Other approvals (under Local Government Act, Roads Act and Water Management Act) may also be required.*

Repeal of existing DCPs

In accordance with Clause 22(2) of the *Environmental Planning and Assessment Regulation 2021*, this DCP repeals the Kempsey Development Control Plan 2013.

Transitional provisions relating to development applications

Any Development Application that has been made prior to the commencement of the DCP, on land to which the DCP applies, that has not been determined must be determined under the Kempsey Development Control Plan 2013, and as if the plan has been exhibited but not commenced.

Further information

If you have any enquiries or would like further information about this DCP, please contact Kempsey Shire Council on the following:

Phone	**(02) 6566 3200**
Email	**ksc@kempsey.nsw.gov.au**
Web	**www.kempsey.nsw.gov.au**
Address	**22 Tozer Street, West Kempsey, NSW 2440**

Disclaimer

The Development Control Plan (DCP) is for use by Council and the general public.

Council provides the information contained in the plan in good faith. In some cases the plan only provides a reference or outline of legislative provisions and technical codes.

References to legislation, policy, regulation and/or codes are taken to be to the current version.

Compliance with the requirements of the DCP will not mean that a Development Application will be approved. Council must assess the proposed development against all of the relevant requirements of the *Environmental Planning and Assessment Act 1979*.